

		the only evidence of bad faith adduced by Plaintiffs is Jobot’s delay in seeking relief—a delay that, contrary to Plaintiffs’ argument, is well-explained. Accordingly, the motion is granted.
3	Marquez vs. CSL Berkshire Operating LLC 2025-01518232	Plaintiff’s Motion to Dismiss Plaintiff Hermina R. Marquez’s motion to dismiss pursuant to CRC 3.770 is GRANTED. On July 23, 2026, Defendant CSL Berkshire Operating Company, LLC served a CCP § 998 offer on Plaintiff. Plaintiff accepted the offer on July 30. (Carlin Decl. (included in ROA 45) ¶ 2 & Ex. 1.) The parties agreed that Defendant will pay Plaintiff \$17,005 to settle her individual claims, plus attorney’s fees in an amount to be determined. (<i>Id.</i>, at ¶ 3.) In the meantime, the Ventura County Superior Court has preliminarily approved a class and PAGA settlement in <i>Orozco v. Clearwater Senior Living</i>, No. 202200568082CUOE. The <i>Orozco</i> case involves identical overlapping class and PAGA claims on behalf of similarly situated employees. (<i>Id.</i>, ¶ 6 & Ex. 2.) In this case, on the other hand, no class has been certified, no notice of this action has been sent to putative class members, and neither Plaintiff nor her counsel have contacted unrepresented employees regarding this case. (<i>Id.</i>, ¶ 5.) Plaintiff’s motion complies with the requirements of CRC 3.770. It is granted. Her individual claims are dismissed with prejudice, and her class and PAGA claims are dismissed without prejudice.
4	Viramontes vs. Prestige Design Center, Inc. 2021-01179611	Plaintiff’s Motion to Correct Clerical Error in Judgment Plaintiffs’ unopposed motion to correct clerical errors in the judgment is GRANTED. CCP § 473(d) provides: “The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” Plaintiffs contend the judgment in this class and PAGA action (ROA 434) contains two clerical errors. First, while the motion lists various Court-approved deductions from the agreed-upon gross settlement amount, the Gross Settlement Amount (GSA) itself is never listed. Second, because the GSA is never listed, the net settlement amount payable to class members cannot be calculated. It is undisputed that the GSA in this matter is \$527,752.93. (LaCour Decl. (ROA 464) Ex. C, at ¶ 23.) Taking the deductions from the GSA listed in the judgment, the NSA is \$243,720.93. “The difference between judicial and clerical error rests not upon the party committing the error, but rather on whether it was the deliberate result of judicial reasoning and determination. The distinction between clerical error and judicial error is whether the error was made in rendering the judgment, or in recording the judgment rendered.” (<i>Rochin v. Pat Johnson Manufacturing Co.</i> (1998) 67 Cal.App.4th 1228, 1238.) Here, the omission of the GSA and resulting NSA is an error in recording the judgment rendered. While the deductions taken from the GSA were subject to the Court’s discretion, the GSA was fixed by the parties’ settlement. There is no dispute that whatever amount is left over following the discretionary deductions would, <i>without</i> an exercise of the Court’s discretion, become the Net Settlement Amount (NSA). The Court will therefore correct the clerical error in the judgment by amending it to add the amounts of the GSA and NSA.
5	Diaz vs. Precision Waterjet Inc.	Plaintiff’s Motion for Final Approval